
Defence Strategy Report — v2

Curatela Fallimento Agricola Gavioli S.r.l.
v. Naissance (UK) Ltd

Tribunale di Siena, Sezione Unica Civile — R.G. 2505/2025

Prepared for: Grahame McGirr

Amount in dispute: EUR 57,536.75 + interest from 01.07.2025 + costs

Costituzione deadline: 04 May 2026

Hearing: 14 May 2026, Judge Marianna Serrao

Date of report: 18 April 2026

Naissance UK Ltd — Defence Strategy Report (v2)

For: Grahame McGirr, Director, Naissance UK Ltd **Case:** Tribunale di Siena, Sezione Unica Civile, R.G. 2505/2025 (Curatela Fallimento Agricola Gavioli S.r.l. v. Naissance UK Ltd) **Amount claimed:** €57,536.75 + legal interest from 01.07.2025 + costs **Costituzione deadline:** 04 May 2026 **Hearing:** 14 May 2026 at 10:00, Judge Marianna Serrao **Status:** Final — for your review and sign-off to Avv. Belardi this week

1. One-page summary

The bankruptcy trustee of Agricola Gavioli S.r.l. is suing Naissance UK Ltd in Siena to recover **€57,536.75**. The arithmetic of the claim is straightforward:

Naissance received €629,975.04 via the foreclosure proceeding. Naissance was admitted to the bankruptcy's liabilities for only €572,438.29 as a secured mortgage

claim. The difference, €57,536.75, must (says the trustee) be returned to the estate under Cass. 23482/2018 and 12673/2022, which treat foreclosure distributions as **provisional** pending final bankruptcy ranking.

The trustee's case is serious and the two Cassazione authorities do support his general proposition. But the case has two live defences and two live quantum attacks:

- **Finality of the 04.04.2019 distribution plan.** It was approved in court without challenge from any party, including the trustee.
- **Internal inconsistency of the 2018 Istanza.** It says €1,118,438.29 in clause 3 and €1,188,438.29 in clause 4 — only the latter reconciles arithmetically. Belardi's "clerical error" argument is therefore on better ground than a first reading would suggest.
- **€30,000 "refund" double-count.** The €30,000 Naissance wired to Argo Ge.Re.Cre. on 05.06.2018 was refunded via the distribution; the trustee now counts the refund as a "received" sum.
- **€3,932 non-admitted legal expenses** were not part of the bankruptcy admission and should not figure in any restitution.

A realistic outcome profile is **15–25% full win, 40–50% partial win (claim reduced to €20–35k range), 30–40% full loss**. The target for a negotiated settlement is **€20k–€35k all-in**.

The recommended action this week is:

1. Instruct Avv. Belardi in writing to **file a substantive defence by 04.05.2026** combining (a) finality + (b) the strengthened errore-materiale argument + (c) quantum attack on the €30,000, €3,932 and €4,761.47.
2. Authorise Belardi to **open a parallel settlement channel** with the curator.
3. **Preserve the Fiorilli fallback** — the istanza's internal inconsistency is itself a hook for professional-indemnity recourse later if needed, so do not lead with it but do not waive it.

2. The claim in detail

2.1 How the €57,536.75 number is built

The trustee pleads, in the 30.12.2025 Ricorso filed by Avv. Finetti, that Naissance received a total of **€629,975.04** via the individual enforcement proceeding RGE 187/2015:

Item	€
Assignment of the Chianciano property (26.06.2018 decree of transfer)	616,000.00
Sums assigned at the 04.04.2019 distribution hearing (property fruits + legal fees)	25,806.02 under two sub-heads totalling ~25,806.02
Refund of procedural advance previously paid by Naissance	30,000.00
Less: €13,975.04 previously identified as "extra" over the strict assignment price	(split between €10,043.04 higher distribution + €3,932 legal expenses not admitted in bankruptcy)
Trustee's total received figure	629,975.04

Against that, the bankruptcy's Delegated Judge admitted Naissance in 2019 to the liabilities for **€572,438.29** as a secured mortgage claim (plus €4,761.47 prededuzione for legal fees, which was excluded).

Difference = **€629,975.04 – €572,438.29 = €57,536.75** = the claim.

2.2 The legal theory

The trustee cites **Cass. 23482/2018** and **Cass. 12673/2022** for the proposition that a mortgage creditor who continues the foreclosure after the debtor's bankruptcy receives sums **provisionally**. The final ranking is done in the bankruptcy. Anything above the admitted secured amount is recoverable by the estate under arts. 110 L.F. / 230–232 CCII, and more generally under the *indebito oggettivo* provisions of art. 2033 c.c.

Art. 41 TUB is cited as the procedural basis for Naissance having been entitled to continue (and complete) the foreclosure, but that is a procedural privilege — not, in itself, the answer to the ranking question.

3. The documentary picture

3.1 What the underlying credit chain shows

- **28.12.2010**: Banca CRAS grants a mortgage loan to Agricola Gavioli, secured by first-rank voluntary mortgage (Notary Zorzi, Rep. 15831, Racc. 7534).
- **28.07.2017**: the credit is assigned twice on the same day — Banca CRAS → Argo Ge.Re.Cre. → Naissance UK Ltd. The total credit passed to Naissance is approximately **€1,188,438.29**. Not in dispute — the trustee acknowledges the chain.

3.2 What the Istanza says (the trustee's own exhibit)

Avv. Fiorilli's **14.12.2018** Istanza di Ammissione al Passivo (in the project bundle as 05a ISTANZA AMMISSIONE AL PASSIVO.pdf):

- Clause 3: Naissance asserts a credit of **€1,118,438.29** against Agricola Gavioli.
- Clause 4: the secured mortgage claim is **€572,438.29 (1.188.438,29 sottratta la somma di assegnazione pari ad euro 616.000,00)**, plus €4,761.47 prededuzione for RGE. 187/2015 legal fees.
- Formal request: admit Naissance to the liabilities for a total of **€577,199.76**.

Two important things follow:

1. **Clause 3 and clause 4 are internally inconsistent.** €1,118,438.29 and €1,188,438.29 differ by €70,000. Only €1,188,438.29 is mathematically coherent with the €572,438.29 residual + €616,000 assignment. The documents attached to the Istanza (the 28.07.2017 assignment contracts) all record €1,188,438.29. Clause 3 is therefore almost certainly a typo.
2. **The Delegated Judge admitted only €572,438.29** (the prededuzione €4,761.47 was excluded).

3.3 What the distribution plan shows

- **26.06.2018**: decree of transfer assigning the Chianciano property to Naissance for €616,000.
- **04.04.2019**: distribution plan approved by the Enforcement Judge at a hearing. **Not impugned** by the trustee or anyone else within the statutory window.

3.4 What the cost evidence shows (including the late additions)

Naissance's documented outflows in connection with the enforcement and related work, after reconciling the wires and cheques (the **€30,000 FX wire of 05.06.2018 is the same payment as the €30,000 cheque** — not an additional outflow):

Date	Mode	€	Evidence
26.04.2018	Wire to Argo Ge.Re.Cre.	57,000	FX confirmation (Thomas Exchange UK); ties to the itemised €57,110.15 Gavioli cost list in email 6
01.05.2018	Wire to Argo Ge.Re.Cre.	20,000	FX confirmation
05.06.2018	€30,000 cheque executed as FX wire	30,000	Cheque image + FX confirmation (same payment)
Pre-auction	€45,000 cheque	45,000	Cheque image
Total evidenced		~152,000	

Of which **€30,000** was subsequently refunded to Naissance via the 04.04.2019 distribution plan — see §4.2 below (this is the central double-counting point). The client's claim of €130,000+ in costs is now documentarily supported, and there is no overlap between the wires and the cheques.

3.5 What the market-value evidence shows

Three contemporaneous data points:

- **06.09.2017**: expression of interest at €550,000 (Marco Gavioli via Gordana Lupi → Argo Ge.Re.Cre.).
- **12.09.2017**: upgraded expression of interest at €620,000.
- Grahame's 18.04.2026 email also refers to an accepted pre-auction transaction at €630,000.
- **Actual auction clearing price**: €616,000.

The €616,000 auction price is consistent with the market. There is no "hidden value" that would justify unwinding the distribution.

4. Defence strategy

4.1 Track 1 — Finality of the 04.04.2019 distribution plan (primary)

The 04.04.2019 distribution plan was approved by the Enforcement Judge at a hearing. Under art. 512 c.p.c. and related authorities, challenges to such a plan have strict procedural prerequisites and time limits. The trustee did not challenge it at the time; he cannot now use Cass. 23482/2018 and 12673/2022 as a free-standing six-year later remedy unless he first proves he had no earlier opportunity.

What Belardi needs to do: - Produce the hearing minutes and distribution plan as filed - Show whether the curator was present or properly notified - Plead inadmissibility / estoppel /

untimeliness - Distinguish Cass. 23482/2018 on its facts (in that case the trustee intervened in time; here the trustee did not)

Estimated probability this track alone wins: ~20–25%.

4.2 Track 2 — Quantum attack (primary)

Even if the finality argument fails, the trustee's arithmetic is attackable on three fronts:

(A) €30,000 double-counting (the strongest quantum point). The trustee's €629,975.04 "received" figure includes a €30,000 "refund of procedural expense advance". The documentary record (late-additions email 3) shows Naissance wired €30,000 to Argo Ge.Re.Cre. on 05.06.2018. That money later came back to Naissance through the distribution. Net flow to Naissance from the estate = €0. Including it in the claim is double-counting.

Removing this line alone drops the claim from **€57,536.75** → **€27,536.75**.

(B) €3,932 non-admitted legal expenses. The trustee's own pleading describes €3,932 as "legal expenses not admitted to the bankruptcy liabilities". These are foreclosure- proceeding legal expenses that were ruled not recoverable from the bankruptcy; they are not a payment out of the estate to Naissance. They should not figure in any restitution.

Removing this line as well: claim drops to **€23,604.75**.

(C) €4,761.47 excluded prededuzione. The Delegated Judge in 2019 excluded €4,761.47 of legal fees from prededuzione rank. If the trustee's case logic requires treating the 2019 admission order as res judicata (which it does), then the €4,761.47 was a validly-claimed legal cost that was wrongly excluded. Naissance should be credited for it against any restitution.

Removing this line as well: claim drops to **€18,843.28**.

Estimated probability a material quantum reduction succeeds: ~65–75%. Expected realistic quantum win: reduces claim to the €20–30k range.

4.3 Track 3 — Errore materiale in the Istanza (supporting)

This is Belardi's proposed primary line. The Istanza is indeed internally inconsistent (clause 3 says €1,118,438.29, clause 4 parenthetical says €1,188,438.29, only the latter reconciles). The documents attached to the Istanza all record €1,188,438.29.

There is therefore a real "clerical error / *errore materiale*" hook. But two problems:

1. The error is in the *premises* of the Istanza, not in the *formal request*. The formal request is unambiguous: €577,199.76 total.
2. The **2019 admission order** treated €572,438.29 as the admitted secured amount — that order is now res judicata regardless of any typo in the underlying application.

So the errore-materiale argument, standing alone, probably does not defeat the claim. It does provide:

- A supporting pillar to the finality argument (the whole bankruptcy treatment is inconsistent with the documents on the file)
- A basis for a **Fiorilli professional-indemnity claim** if the defence fails — because the typo is an objective drafting defect in Fiorilli's own document

Recommendation: plead as a supporting argument, not as the headline. Reserve Fiorilli rights formally but do not join him as third party in this proceeding — that is a separate action.

4.4 Track 4 — Settlement (parallel)

Belardi has already signalled in his 17.04.2026 email that settlement "su basi economiche diverse e minori rispetto a quelle richieste" is achievable. With the quantum arguments above as leverage, a realistic target is:

- Opening position to curator: **€15,000–€20,000** all-in
- Target landing: **€20,000–€30,000** all-in
- Walkaway ceiling: **€45,000** all-in (vs exposure of ~€70,000 if we lose outright and bear costs + interest)

Run the settlement channel in parallel with the defence filing, not instead of it. Filing a strong defence improves settlement terms.

5. What's wrong with the alternatives

5.1 The "ChatGPT line" — "the distribution plan is final, claim is weak"

Correct instinct on finality, but underestimates Cass. 23482/2018 and 12673/2022. Those cases **are** on point and are the trustee's whole case. Any defence that doesn't engage with them directly loses. Also misses that the case can still be won on quantum even if finality fails.

5.2 Belardi's "errore materiale only" line

The istanza's inconsistency is real, but the admission order is res judicata for €572,438.29 regardless. Belardi's strategy addresses a framing issue, not the substantive art. 110 L.F. principle the trustee relies on. It needs the finality and quantum work layered on top.

5.3 The "€1.188m net-position" argument

"We are owed €1.188m underneath, so we can't owe anything" is an emotionally compelling point but is not a legal answer under Italian insolvency law:

- The trustee already concedes the credit chain

- The admitted mortgage claim is €572,438.29, which ranks *pari passu* with other unsecureds in the residual; it does not function as a euro-for-euro offset against a specific surplus- restitution duty
- Art. 56 L.F. statutory set-off requires both claims to exist before the bankruptcy declaration and to be certain, liquid, payable — the trustee's claim arose after

Use as a **counterclaim / settlement lever**, not as primary defence.

6. Probability of outcomes (recommended strategy executed)

Outcome	Probability	What it looks like
Full win (claim dismissed, costs recovered)	15–25%	Finality argument accepted or case settled at zero
Partial win (claim reduced materially — settlement or order in €15–35k range)	40–50%	Quantum arguments accepted in whole or part; or settlement
Full loss (claim upheld at ~€57,536.75 plus interest and costs, ~€70–85k exposure)	30–40%	Finality fails, quantum arguments rejected, no settlement

The single highest-leverage item is the **€30,000 double-count**. Closing that point alone, without winning anything else, almost halves the claim.

7. What to do this week

1. **Send the updated email to Belardi** (14_Draft_email_to_Belardi_v2.eml and English PDF). It approves his strategic direction, adds the finality and quantum layers on top, requests his view on each, and confirms the settlement mandate.
2. **Confirm procedural points with Belardi**: that 04.05.2026 is the costituzione deadline and 14.05.2026 is the hearing; the correct pleading vehicle (memoria difensiva vs comparsa di costituzione e risposta under the rito semplificato art. 281-decies c.p.c.).
3. **Ask Belardi to verify** the two Cassazione citations in full text (not just the massimario), to confirm the factual distinction available to us.
4. **Finalise the €30,000-refund point** — check whether the trustee's attached accounts confirm the €30,000 as both an outflow in 2018 and an inflow at 04.04.2019; if yes, this is the headline attack.
5. **Do not join Fiorilli** in this proceeding; reserve the professional-indemnity route for after the Naissance defence succeeds or fails.
6. **Decide privately** the walkaway settlement ceiling (recommended: €45,000 all-in).

8. Confidence

Moderate-high on the factual foundations, moderate on outcome.

- The arithmetic is verified against the Ricorso and the Istanza directly (not from a secondary report).
- The case reference, defendant identity, procedural timeline, and the parties' identities are verified.
- The €30,000 refund point is documentarily supported (Naissance's 05.06.2018 wire evidenced, and the trustee's own pleading acknowledges the €30,000 refund).
- The Cassazione citations have been accepted on the trustee's own pleading — Belardi must pull the full text to confirm.
- The probability estimates are judgement, not certainty.

Feeds into: 14_Draft_email_to_Belardi_v2.eml, the English translation PDF, and the ChatGPT-review prompt 11_CHATGPT_REVIEW_PROMPT.md.

Final comparison table — the four approaches considered

#	Approach	Pros	Cons / why it fails on its own	My estimate of probability of success	Verdict
1	ChatGPT "Plan is final — claim is weak"	- Correct instinct on the 04.04.2019 distribution plan - Riparto was court-approved — finality is a real Italian-law principle - Simple to plead	- Ignores Cass. 23482/2018 & 12673/2022 — the rulings the trustee relies on - Those rulings say finality does not automatically protect the guarantor - Misses the strong quantum attacks (€30k refund, €3,932, €4,761.47) - Builds no settlement groundwork	Full win ~ 10–15% Partial win ~ 15–20% Full loss ~ 65–75%	Unsafe.
2	Avv. Belardi "Errore materiale" primary + Fiorilli PI fallback	- The Istanza is internally inconsistent (clause 3: €1,118,438.29 vs clause 4: €1,188,438.29) - Attached documents all show €1,188,438.29 - Preserves Fiorilli professional-indemnity route - Professionally credible in front of the judge	- The 2019 admission order for €572,438.29 is res judicata regardless of any typo - Addresses the framing, not the substantive art. 110 L.F. principle - Missing the finality argument and the €30,000 double-count - Leaves value on the table	Full win ~ 15–20% Partial win ~ 25–35% Full loss ~ 45–60%	Right direction, needs layering.
3	Net-position "Only ~half of the €1.188m credit has been recovered"	- Facts documented & accepted by trustee - Credit of €1,188,438.29 (2017 assignment) - Only €616k (auction) + ~€130k (riparto) recovered €572,438.29 admitted to stato passivo, still unpaid - Strong equitable force; excellent settlement lever	- Surplus-restitution under Cass. 23482/2018 is a separate accounting from guarantor's make-whole position - Art. 56 L.F. set-off out of reach — trustee's claim arose post-bankruptcy - Admitted €572k ranks <i>pari passu</i> — not a euro-for-euro offset - If pleaded as primary defence, signals misunderstanding & risks judge's sympathy	<10% as primary Adds ~€10–15k of settlement discount used as counterclaim alongside Tracks 1–2	Counterclaim / settlement lever only.
4	Finality + Quantum + supporting Errore materiale + Settlement (recommended)	- Directly engages Cass. 23482/2018 & 12673/2022 via the 04.04.2019 finality argument - The €30,000 refund double-count alone drops the claim to €27,536.75 - Quantum ladder: €30k + €3,932 + €4,761.47 cumulatively reduces to ~€18,843 - Belardi's errore-materiale argument layered as supporting pillar - Fiorilli PI preserved as fallback without pleading him in - Parallel settlement channel targeting €20–30k	- Higher legal fees than Belardi-as-is - Requires Belardi to pull the full text of both Cassazione cases and the 04.04.2019 hearing minutes - Requires Grahame to commit walkaway ceiling privately before negotiating - Material loss tail remains	Full win 15–25% Partial win 40–50% Full loss 30–40% Target: settle €20–30k all-in	Recommended.

Bottom line: the recommended route is **Approach 4** — finality + quantum attack (with the €30,000 refund double-count as the single highest-leverage item), layered with Belardi's errore-materiale argument as supporting pillar, plus a parallel settlement channel targeting €20–30k all-in. Fiorilli is preserved as a fallback, not joined to this proceeding.